

Storm Wellness Club

Membership Agreement

Version 2.0 (Draft) | Effective Date: _____

BUYER'S RIGHT TO CANCEL: YOU, THE BUYER, MAY CANCEL THIS AGREEMENT AT ANY TIME BEFORE MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE YOU SIGN THIS AGREEMENT. TO CANCEL, DELIVER OR MAIL A SIGNED AND DATED WRITTEN NOTICE OF CANCELLATION TO: STORM WELLNESS CLUB, 19305 VICTOR PARKWAY, LIVONIA, MI 48152, OR EMAIL support@stormwellnessclub.com. IF YOU CANCEL WITHIN THIS 3-DAY PERIOD, THE CLUB WILL REFUND ALL MONEY PAID UNDER THIS AGREEMENT WITHIN 30 DAYS.

1. Parties & Facility

This Membership Agreement ("Agreement") is entered into by and between Storm Wellness Club ("Club," "we," "us") and the individual signing below ("Member," "you"). The Club operates a health, fitness, and wellness facility located at 19305 Victor Parkway, Livonia, Michigan 48152.

2. Term (Initial One-Year Commitment)

Membership is issued for an initial term of twelve (12) consecutive months ("Initial Term") beginning on the Membership Activation Date. THE MEMBER ACKNOWLEDGES THIS IS A ONE-YEAR COMMITMENT. This term was disclosed and separately acknowledged by the Member during the online application process prior to signature. Upon completion of the Initial Term, this Agreement will automatically renew for successive one (1) month terms on a month-to-month basis unless cancelled in writing under Section 6.

3. Total Contract Price (HCSA Disclosure)

The total price of the Initial Term is calculated as: (a) a one-time non-refundable Initiation Fee of \$300.00, plus (b) twelve (12) months of monthly dues at the Member's selected tier rate, plus (c) applicable Michigan sales tax (6%) and payment processing fees. The Member's specific monthly dues, tier, and total 12-month contract price are itemized on the Member's checkout receipt and payment confirmation email, which are incorporated into this Agreement by reference. NO PORTION OF THE INITIATION FEE IS REFUNDABLE EXCEPT AS REQUIRED BY SECTIONS 4 AND 5.

4. Statutory Cancellation Rights (Michigan Health Studio Act)

In addition to the 3-day right to cancel above, the Member may cancel this Agreement, and receive a pro-rata refund of any prepaid unused dues, upon any of the following:

(a) Death of the Member. The Member's estate may cancel upon presentation of a death certificate; the Club will refund the pro-rata unused portion of prepaid dues within 30 days.

(b) Permanent Disability. If the Member becomes physically unable to use the Club's services for more than six (6) months, the Member may cancel upon presentation of a physician's written certification. The Club will refund the pro-rata unused portion of prepaid dues within 30 days.

(c) Relocation. If the Member permanently relocates his or her residence more than twenty-five (25) miles from the Club and no comparable facility operated by the Club exists within that radius, the Member may cancel upon written notice with reasonable proof of relocation (e.g., lease, utility bill, driver's license). The Club will

refund the pro-rata unused portion of prepaid dues within 30 days.

(d) Club Closure or Material Relocation. If the Club permanently closes or relocates more than five (5) miles from the address above and does not provide a comparable substitute facility, this Agreement terminates automatically and any prepaid unused dues will be refunded within 30 days.

These cancellation rights cannot be waived.

5. Early Termination by Member (Non-Statutory)

Except for the cancellation rights in Sections 4 (statutory) and the 3-day right above, the Member's commitment during the Initial Term is not cancellable at will. If the Member wishes to end the Agreement before the Initial Term expires for any reason not covered by Section 4, the Member may elect one of the following:

(a) Buyout. Pay a lump-sum buyout equal to fifty percent (50%) of the remaining monthly dues for the balance of the Initial Term. Upon payment, the Agreement terminates and no further dues are owed.

(b) Continued Billing. Continue monthly dues billing for the remainder of the Initial Term. Access to the facility remains available during this period.

The Initiation Fee, annual fee, and any consumed services (class packs, spa, café, guest passes) are non-refundable under this Section. This Section does not apply to, and does not limit, any cancellation right under Section 4.

6. Renewal & Cancellation After Initial Term

AUTO-RENEWAL NOTICE: AFTER THE INITIAL TERM, THIS AGREEMENT RENEWS AUTOMATICALLY ON A MONTH-TO-MONTH BASIS AT THE THEN-CURRENT TIER RATE. To cancel a month-to-month renewal, the Member must provide written notice (email to support@stormwellnessclub.com is sufficient) at least thirty (30) days before the next billing date. The Club will confirm cancellation in writing.

7. Monthly Dues, Billing & Payment Method

Monthly dues are billed on a recurring monthly basis via the payment method the Member authorizes at signup and stores on file with the Club's payment processor (Stripe). Michigan sales tax and payment processing fees are added to each charge. The Member is responsible for keeping the payment method current. If a charge fails, the Club will attempt automated retries and will notify the Member; the Member is responsible for any amounts owed for periods during which access was granted.

8. Annual Facility Fee

In addition to monthly dues, the Member authorizes a recurring annual facility fee (currently \$300.00) charged on the anniversary of the Membership Activation Date. This fee funds facility maintenance, equipment refresh, and amenity upkeep. The annual fee is non-refundable once the annual period begins, except as required by Section 4.

9. Freeze Policy

The Member may request a membership freeze for a minimum of one (1) full month and a maximum of three (3) consecutive months per calendar year. During a freeze, monthly dues are paused and access to member benefits is suspended. The Initial Term is extended by the length of the freeze. Freeze requests must be submitted in writing at least seven (7) days before the next billing date.

10. Included Benefits & Credits

Membership includes a monthly allotment of class credits, wellness credits, and amenity access as described on the Club's website for the Member's tier. Unused monthly credits do not roll over. Benefits are suspended during any freeze, past-due status, or block.

11. Past-Due Accounts & Suspension

If a monthly charge fails and remains unpaid, the Club may suspend access to the facility and all member benefits until the balance is brought current. Suspension does not toll the Initial Term or excuse the obligation to pay accrued dues.

12. Rules of Conduct & House Rules

The Member agrees to comply with all posted Club rules, staff instructions, dress code, cleanliness expectations, class cancellation policy, and reservation policies. The Club may terminate this Agreement for cause (with no refund beyond amounts required by Section 4) upon material violation, harassment, theft, drug use, or conduct endangering other members or staff.

13. Assumption of Risk & Liability Waiver

The Member acknowledges that use of exercise equipment, fitness classes, saunas, cold plunges, red-light therapy, cryotherapy, salt therapy, massage, aesthetic treatments, and other Club amenities carries inherent risk of injury. The Member assumes this risk. A separate Liability Waiver is signed as part of onboarding and is incorporated by reference.

14. Guest & Kids-Care Policies

Guest passes and Kids-Care services are governed by separate agreements presented at point of use. Charges for those services are in addition to monthly dues.

15. Communications & Consent

The Member consents to receive transactional and service-related emails, SMS (A2P 10DLC compliant), and push notifications regarding bookings, billing, and facility updates. Marketing communications can be opted out of at any time via the account portal or by replying STOP to SMS.

16. Privacy

The Club collects and processes personal information (contact info, health-intake for spa services, biometric photo for check-in identity, payment tokens via Stripe) as described in the Club's Privacy Policy at stormwellnessclub.com/privacy.

17. Dispute Resolution

Any dispute arising out of this Agreement will first be addressed by good-faith written negotiation between the parties for thirty (30) days. If unresolved, disputes will be resolved in the state or federal courts located in Wayne County, Michigan, under Michigan law. Nothing in this Section limits any statutory right of the Member under the Michigan Health Studio Act (MCL 445.1811 et seq.) or the Michigan Consumer Protection Act (MCL 445.901 et seq.).

18. No Waiver of Statutory Rights

Any provision of this Agreement that conflicts with a right granted to the Member by the Michigan Health Studio Act or the Michigan Consumer Protection Act is void to the extent of the conflict, and the statutory right

controls. No other provision of this Agreement is affected.

19. Severability

If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force and effect.

20. Entire Agreement & Incorporated Documents

This Agreement, together with (a) the online application acknowledgments (including the one-year commitment checkbox and its timestamp), (b) the signed Liability Waiver, (c) the Club's posted house rules and cancellation policy, and (d) the Member's tier and pricing shown at checkout, constitute the entire agreement between the parties. Amendments must be in writing. Members will be notified of any material change at least thirty (30) days in advance and given an opportunity to cancel without penalty if they do not accept the change.

21. Signature

By electronically signing below, the Member acknowledges receipt of a copy of this Agreement, acknowledges the 3-day right to cancel disclosed above, and agrees to the Initial Term and all other provisions.

Member Signature: _____ Date: _____

Printed Name: _____

Club Representative: _____ Date: _____

DRAFT v2.0 — This document is under legal review and is NOT the currently binding Membership Agreement. The active signed contract remains v1 until this draft is formally activated by the Club.